Lunchrooms

2.11.3 Where 7 or more persons regularly congregate to eat food, other than where the mining activity of an open pit mine is performed, a lunchroom shall be provided which shall:

(1) be heated, lighted, and ventilated,

(2) have or be located near facilities for persons to wash with cold and hot running water and dry their hands,

(3) not have an entrance through a toilet facility,

(4) contain sufficient fire retardant receptacles with lids, which shall be used by employees to dispose of all waste food, paper, and other related material, and the containers shall be emptied regularly,

(5) have suitable seating facilities equipped with backrests and tables with impervious top surfaces which shall be kept in clean and sanitary condition,

(6) be constructed of materials which can be, and shall be, maintained in a clean condition,

(7) have the following minimum dimensions

No. of Persons	**sq. m/Person**
25 or less	1.2 (min. size 6 sq. m.)
26 to 74	1
75 to 149	0.66
150 to 499	0.56
500 or more	0.46

and

(8) be located in an area away from process chemicals and contaminants.

2.11.4 Where more than 3 persons and fewer than 7 persons regularly congregate to eat food, other than where the mining activity at an open pit mine is performed, an eating area shall be provided which complies with 2.11.3 (1), (4), (5), (6), (7), and (8), and provided with facilities for persons to clean their hands.

Mine Dry

2.11.5 (1) The manager shall provide separate facilities for male and female employees to wash and shower, and to change and dry their clothing

(a) at a surface mine where persons are subject to dusty, dirty, or wet conditions, and

(b) at an underground mine, and this facility shall include separate storage facilities for street clothes and working clothes.

(2) The facilities shall have separate approaches with signs clearly indicating for which gender they have been provided.

Location of Mine Dry

2.11.6 A mine dry shall not be located

(1) in a headframe, boiler room, engine room, bunkhouse, or dining room unless a separate, properly constructed room is provided, or

(2) nearer than 15 m to a shaft house or portal house unless it is constructed of non-combustible materials.

2.11.7 The mine dry shall be adequately heated, lighted and ventilated, kept clean and sanitary, and have one shower for every 7 persons leaving work at the same time.

Temperature of Washing Water

2.11.8 Water that is to be used for personal washing shall not exceed 60 degrees Celsius at any outlet, and shall not be mixed directly with steam.

Washroom Facilities

2.11.9 (1) The manager must provide separate washroom facilities for male and female employees.

(2) The washroom facilities must be conveniently located and equipped with

(a) subject to subsection (3),

(i) one toilet and one urinal for every 25 male employees or fraction thereof, and

(ii) one toilet for every 9 female employees or fraction thereof,

(b) one wash basin, or equivalent facility, provided with hot and cold running water for every 15 employees or fraction thereof,

(c) a means for drying hands hygienically, and

(d) adequate heat, light, and ventilation.

(3) Despite subsection (1), for a mine that has 6 employees or less,

(a) the manager must provide at least one universal washroom facility, and

(b) if the manager provides additional washroom facilities, some or all of them may be universal washroom facilities.

(4) The washroom facilities must have separate entrances with signs clearly indicating for which gender they have been provided or indicating that they are a universal washroom facility.

(5) With respect to new mines or substantial renovations to the permanent washroom area of an existing mine on and after May 1, 2023, in addition to the washroom facilities referred to in subsection (1), for a mine that has more than 6 employees, the manager must provide at least one universal washroom facility.

2.11.10 Repealed.

2.11.11 For the purposes of section 2.11.9 (2)

(1) each 600 mm of straight through urinal may be counted as one urinal, and

(2) each 500 mm of circumference of a circular wash fountain or length of a straight trough wash basin may be counted as one wash basin.

Toilets

2.11.12 A toilet on the surface of a mine shall be

(1) of the water flushing type or other sanitary design, located in an individual compartment with a door that locks, and with walls and floor of a finish or material that can be easily cleaned,

(2) fitted with an open-front seat and provided with a reasonable supply of toilet paper,

(3) provided with a clothes hook and lighting where electricity is available, and

(4) kept clean and sanitary, and any waste products shall be disposed of regularly.

Toilets Underground or Portable on Surface

2.11.13 Toilets in an underground mine and portable toilets on surface shall be conveniently located in well ventilated areas having regard to the number of employees in the various parts of the mine, and

(1) they shall be supplied with toilet paper and provide privacy,

(2) be maintained in a hygienic condition and have all waste material removed regularly, and

(3) be equipped with facilities for persons to clean their hands.

2.11.14 No person shall deposit feces in any place in an underground mine other than a toilet.

Seasonal Camps

2.11.15 Sanitary conveniences at seasonal, short-term mining camps shall comply with the Industrial Camps Regulation under the *Public Health Act*.

Medical Surveillance Programs

Program Requirements

2.12.1 (1) The manager shall notify the chief inspector when the manager believes there is a need for a medical surveillance program, for persons

(a) in a dust exposure occupation,

(b) exposed to excessive noise, or

(c) exposed to any chemical, physical, or radiation agent specified by the chief inspector.

(2) A medical surveillance program, when required by the chief inspector, shall be modeled after the "Guidelines for Standard Practice for Medical Monitoring Programs" issued by the chief inspector and shall be of a form satisfactory to the chief inspector.

Audiometric Testing

2.12.2 Audiometric testing shall be carried out by a certified audiometric technician.

2.12.3 (1) The manager shall advise persons working in a dust, excessive noise, chemical, physical, or radiation exposure occupation, of the nature of the health risks and that a medical surveillance program is available, and the person, at the person's option, may choose to participate in the program.

(2) A person participating in the medical surveillance program may attend the doctor of the person's choice to undergo the examinations and tests required by 2.12.1 (2).

Medical Advice

2.12.4 A medical surveillance program, required by section 2.12.1, shall ensure that

(1) Each person examined or clinically tested is
- (a) aware of the nature of the health risks and effects for which the person is being examined,
- (b) advised on the person's medical fitness to work,
- (c) advised of any work restriction resulting from the person's medical condition,
- (d) instructed in health precautions required, and
- (e) provided with a copy of the results of the medical examination.

(2) A hearing conservation program is developed and followed.

Maintenance of Records

2.12.5 (1) Personal medical records shall be maintained on a confidential basis by the physician or nurse, and shall not be made available to the manager or any other person, except as required by statute, without the informed written consent of the individual.

(2) Audiometric information shall be made available to the chief inspector.

Chemical Analysis

2.12.6 Whenever a chemical analysis is required for biological monitoring it shall be carried out at a laboratory acceptable to the chief inspector.

Programs at Owner's or Agent's Expense

2.12.7 All medical examinations and tests performed on a person during a medical surveillance program, shall be done at the owner's or agent's expense and the expense shall not be passed on to that person.

Workplace Hazardous Materials Information Systems (WHMIS)

Application

2.13.1 (1) Subject to subsections (2) to (4), sections 2.13.2 to 2.13.19 apply to managers and workers in respect of hazardous products used, stored, or handled at a mine.

(2) Notwithstanding subsection (1), the provisions of this code in respect of a supplier label and a SDS do not apply if the hazardous product is
- (a) an explosive as defined in section 2 of the *Explosives Act* (Canada),
- (b) a cosmetic, device, drug or food as defined in section 2 of the *Food and Drugs Act* (Canada),
- (c) any pest control product as defined in section 2 of the *Pest Control Products Act* (Canada),
- (d) a nuclear substance, as defined in section 2 of the *Nuclear Safety and Control Act* (Canada), that is radioactive, or
- (e) any consumer product as defined in section 2 of the *Canada Consumer Product Safety Act*.

(3) Notwithstanding subsection (1), this code does not apply if the hazardous product is
- (a) wood or a product made of wood,
- (b) tobacco or a tobacco product as defined in section 2 of the *Tobacco and Vaping Products Act* (Canada),
- (c) a manufactured article,
- (d) being transported or handled pursuant to the requirements of the *Transportation of Dangerous Goods Act* (Canada) or the *Transport of Dangerous Goods Act*, or
- (e) cannabis as defined in section 1 of the *Cannabis Control and Licensing Act*.

(4) Notwithstanding subsection (1), sections 2.13.2 to 2.13.19 do not apply to a hazardous waste except that the manager must ensure the safe storage and handling of a hazardous waste generated at that mine through the combination of identification, employee education and training, and information required by this code.

Use, Storage, Handling

2.13.2 (1) The manager must ensure that a hazardous product is not used, stored, or handled at a mine, unless all the applicable requirements of this code in respect of labels, product identifiers, SDSs, and worker education and training are complied with.

(2) Notwithstanding subsection (1), the manager may store a hazardous product at a mine while actively seeking information required by this code, if the manager ensures that

(a) the product is stored in a manner that does not pose a risk to the health and safety of a worker or the environment,

(b) access to the hazardous product is controlled,

(c) the length of time in storage is tracked and must not exceed a period of 90 days at which point the product should be disposed of in accordance with Part 10, and

(d) a worker who works with or may be exposed to the stored hazardous product is trained in the procedures to be followed in case of an emergency involving the hazardous product.

WHMIS Program

2.13.2.1 If hazardous products are used at the mine the manager, in cooperation with the OHSC, must establish and maintain an effective WHMIS program, that

(a) is related to the Health and Safety Program required by section 1.6.9 and any other training, instruction and prevention programs for the mine,

(b) addresses applicable requirements in the Hazardous Products Regulations (Canada) and this code,

(c) is reviewed at least annually, or more frequently if required by a change in work conditions or available hazard information,

(d) provides for the periodic evaluation of the knowledge of workers using suitable means such as tests and practical demonstrations, and

(e) ensures, so far as is reasonably practical, that the program of worker education and training required by sections 2.13.3 and 2.13.4 (1) results in a person being able to apply the information as needed to protect their health and safety.

Worker Education

2.13.3 (1) The manager must ensure that general WHMIS education, as it pertains to the mine, is provided to workers on the

(a) elements of the WHMIS program,

(b) major hazards of the hazardous products in use at the mine,

(c) rights and responsibilities of suppliers, manager and workers, and
(d) content required on labels and SDSs, and the significance of this information.

(2) The manager must ensure that a person who works with a hazardous product or may be exposed to a hazardous product in the course of the person's work activities is informed about all hazard information received from a supplier concerning that hazardous product as well as any further hazard information of which the manager is aware or reasonably ought to be aware concerning the use, storage, and handling of that hazardous product.

(3) If a hazardous product is produced at a mine, the manager must ensure that a person who works with or in proximity to that hazardous product, or may be exposed to that hazardous product in the course of the person's work activities, has access to all hazard information of which the manager is aware or reasonably ought to be aware concerning that hazardous product and its use, storage, and handling.

Worker Training

2.13.4 (1) The manager must ensure that a person who works with a hazardous product or may be exposed to a hazardous product is instructed in

(a) the content of the applicable supplier label and workplace label, and the purpose and significance of the information contained on those labels,
(b) the content required on a SDS and the purpose and significance of the information contained on the SDS,
(c) procedures for the safe use, storage, handling, and disposal of a hazardous product,
(d) the safe use, storage, handling, and disposal of a hazardous product contained or transferred in
  (i) a pipe,
  (ii) a piping system including valves,
  (iii) a process or reaction vessel, or
  (iv) a tank car, tank truck, ore car, conveyor belt, or similar conveyance,
(e) procedures to be followed where fugitive emissions are present,
(f) procedures to be followed in case of an emergency involving a hazardous product, and
(g) how to access or obtain the information at the mine referred to in paragraphs (a) to (f).

(2) The manager of a mine must ensure that the instruction required by subsection (1) is developed and implemented specifically for that mine.

Supplier Label

2.13.5 (1) Subject to any exemptions from labelling requirements in the Hazardous Products Regulations (Canada) and this section, the manager must ensure that the container of a hazardous product or a hazardous product received at a mine is labeled with a supplier label.

(2) Subject to subsection (3), as long as any amount of a hazardous product remains at a mine in the container in which it was received from the supplier, the manager must not remove, deface, modify, or alter the supplier label.

(3) If a label applied to a hazardous product or a container of a hazardous product becomes illegible or is accidentally removed from the hazardous product or the container, the manager must replace the label with either a supplier label or a workplace label.

(4) If a manager imports and receives a hazardous product under the Hazardous Products Regulations (Canada) at the mine, without a supplier label or with a supplier label that does not comply with the Hazardous Products Regulations (Canada), the manager must affix a workplace label that meets the requirements of the Hazardous Products Regulations (Canada).

(5) The manager must update the labels or the information on containers as soon as significant new data is provided to the manager by the supplier.

(6) A manager who has received an unpackaged hazardous product, or a hazardous product transported as a bulk shipment, to which, under the exemption in the Hazardous Products Regulations (Canada), a supplier label has not been affixed or attached, must apply a supplier label to the container of the hazardous product or to the hazardous product at the mine.

(7) Subsections (2) and (3) do not apply if a label is removed under normal conditions of use of a hazardous product that is in a container that has a capacity of 3 ml or less and the label interferes with the normal use of the product.

Workplace Label for Hazardous Products Produced at a Mine

2.13.6 (1) If a process produces a hazardous product at a mine, the manager must ensure that the hazardous product or the container of the hazardous product has applied to it a workplace label.

(2) For the purposes of subsection (1), “produces” does not include the production of a fugitive emission.

(3) Subsection (1) does not apply if the hazardous product is in a container that is intended to contain the hazardous product for sale or distribution and the container is, or is about to be, appropriately labeled.

(4) The manager must update the workplace label for a hazardous product produced by the mine as soon as significant new data are available to the manager.

Workplace Label for Decanted Products

2.13.7 (1) If a hazardous product at a mine is in a container other than the container in which it was received from a supplier, the manager must ensure that the container has applied to it a workplace label.

(2) Subsection (1) does not apply to a portable container that is filled directly from a container that has applied to it a supplier label or workplace label

(a) if the content of the container is clearly identified and the hazardous product

(i) is under the control of and is used exclusively by the worker who filled the portable container, and

(ii) is used only during the shift in which the portable container was filled, or

(b) if all of the hazardous product is required for immediate use.

Identification of a Product in Piping Systems and Vessels

2.13.8 If a hazardous product at a mine is contained or transferred in a pipe, a piping system including valves, a process vessel, a reaction vessel, or a tank car, tank truck, ore car, conveyor belt, or similar conveyance, the manager must ensure the safe use, storage, and handling of the hazardous product through worker training and the use of colour coding, labels, placard, or any other mode of identification.

Placard Identifiers

2.13.9 If the hazardous product is not in a container, or in a container in a form intended for export, the manager may fulfill the labeling requirements under sections 2.13.5, 2.13.6 and 2.13.7 by posting a placard which:

(a) discloses the information required for a workplace label, and

(b) is of a size and in locations so that the information is conspicuous and clearly legible to workers.

Laboratory Label

2.13.10 (1) If a laboratory sample of a hazardous product is the subject of a labelling exemption under the Hazardous Products Regulations (Canada), a label provided by the supplier and affixed to, printed on or attached to the container of the product received at the mine that discloses the following information in place of the information required under the Hazardous Products Regulations (Canada) complies with the requirements of section 2.13.5 of this code with respect to a supplier label:

(a) the chemical name or generic chemical name of any material or substance in the hazardous product that, individually, is classified, pursuant to the *Hazardous Products Act* (Canada) and the Hazardous Products Regulations (Canada), in any category or subcategory of a health hazard class and is present above the relevant concentration limit, or is present at a concentration that results in the mixture being classified in a category or subcategory of any health hazard class, if known by the supplier;

(b) the statement "Hazardous Laboratory Sample. For hazard information or in an emergency, call" followed by an emergency telephone number for the purpose of obtaining information that must be provided on the SDS of the hazardous product.

(2) If a hazardous product is in a container other than the container in which it was received from a supplier, or is produced in the workplace, the manager is exempt from the requirement set out in section 2.13.7 if the hazardous product

(a) is a laboratory sample,

(b) is intended by the manager solely for use, analysis, testing or evaluation in a laboratory, and

(c) is clearly identified through a combination of

(i) a mode of identification visible to workers at the mine, and

(ii) worker education and training required by this code.

(3) The manager must ensure that the mode of identification and worker education and training referred to in subsection (2) (c) enable the worker to readily identify and obtain either the information required on a SDS, if one has been produced, or a label or document disclosing the information referred to in subsections (1) (a) and (b) with respect to the hazardous product or the laboratory sample.

Supplier SDS

2.13.11 (1) A manager who acquires a hazardous product for use, handling or storage at a mine must obtain a supplier SDS in respect of that hazardous product that complies with the requirements of the Hazardous Products Regulations (Canada).

(2) If a supplier SDS obtained under subsection (1) in respect of a hazardous product is 3 years old or older, the manager must obtain from the supplier an up-to-date supplier SDS in respect of any of the hazardous product that remains at the mine.

(3) Subsection (2) does not apply if

(a) the manager has obtained written confirmation from the supplier that

(i) the SDS has not changed, or

(ii) the up-to-date supplier SDS does not apply to the hazardous product, or

(b) it is not practical for the manager to obtain the up-to-date SDS or written confirmation under paragraph (a).

(4) If the manager is unable to obtain a SDS as required by subsection (2), the manager must add any significant new data or new hazard information applicable to that hazardous product that the manager is aware of, or reasonably ought to be aware of, on the basis of the ingredients disclosed in that document.

(5) The manager may provide a SDS in a format different from the format provided by the supplier or containing additional hazard information, if

(a) the SDS provided by the manager, subject to section 2.13.15, includes no less content than the supplier SDS, and

(b) the supplier SDS is available at the mine and the manager-provided SDS indicates that fact.

(6) If a supplier is exempted by the Hazardous Products Regulations (Canada) from the requirement to provide a SDS for a hazardous product, the manager is exempt from the requirement to obtain and provide a SDS for that hazardous product.

Employer SDS

2.13.12 (1) If a process produces a hazardous product at the mine, the manager must prepare a SDS in respect of the product which discloses, subject to section 2.13.15, the information required under the Hazardous Products Regulations (Canada).

(2) For the purpose of subsection (1), "produces" does not include the production of a fugitive emission, nor does it include intermediate products undergoing reaction within a reaction or process vessel.

(3) The manager must update the SDS referred to in subsection (1) as soon as practical after significant new data or new hazard information becomes available to the manager.

Availability of SDS

2.13.13 (1) The manager must ensure that a copy of a SDS required by section 2.13.11 or 2.13.12 is made readily available

(a) at the mine to workers who may be exposed to the hazardous product, and

(b) to the OHSC, as applicable.

(2) If the manager is required by subsection (1) to make a SDS readily available, the OHSC, as applicable, must be consulted on the means on how best to achieve SDS accessibility in the workplace.

Availability of Toxicological Data

2.13.13.1 Subject to section 2.13.15 of this code, if a mine manufactures a hazardous product at the mine, the manager must disclose as quickly as practical the source of any toxicological data used in preparing the SDS required by section 2.13.12 (1) at the request of

(a) any concerned worker at the mine,
(b) the occupational health and safety committee, or
(c) an inspector.

Deletions from SDS

2.13.14 If a manager claims an exemption under section 2.13.15, the manager may delete the information that is the subject of the claim from the SDS required by sections 2.13.11 and 2.13.12 for the time period in subsection 2.13.15 (8) but may not delete hazard information.

Confidential Business Information

2.13.15 (1) A manager who is required, under this code, to disclose any of the following information on a label or SDS may, if the manager considers it to be confidential business information, claim an exemption from the requirement to disclose the information:

(a) in the case of a material or substance that is a hazardous product,
  (i) the chemical name of the material or substance,
  (ii) the CAS registry number, or any other unique identifier, of the material or substance, and
  (iii) the chemical name of any impurity, stabilizing solvent or stabilizing additive that is present in the material or substance, that is classified in a category or subcategory of a health hazard class under the *Hazardous Products Act* (Canada) and that contributes to the classification of the material or substance in the health hazard class under that Act;
(b) in the case of an ingredient that is in a mixture that is a hazardous product,
  (i) the chemical name of the ingredient,
  (ii) the CAS registry number, or any other unique identifier, of the ingredient, and
  (iii) the concentration or concentration range of the ingredient;
(c) in the case of a material, substance or mixture that is a hazardous product, the name of any toxicological study that identifies the material or substance or any ingredient in the mixture;
(d) the product identifier of a hazardous product, being its chemical name, common name, generic name, trade name or brand name;
(e) information about a hazardous product, other than the product identifier, that constitutes a means of identification;

(f) information that could be used to identify a supplier of a hazardous product.

(2) A claim under subsection (1) must be made under the *Hazardous Materials Information Review Act* (Canada) and must be filed in accordance with the procedures established under that Act and the regulations made under it.

(3) A manager is deemed to comply with this code if the manager produces a hazardous product in the workplace and files a claim for exemption under subsection 11 (2) (a) or (b) (i) or (ii) of the *Hazardous Materials Information Review Act* (Canada), and the manager prepares a SDS in respect of that hazardous product that discloses the following in place of the information elements listed in section 3 (1) (a), (b), (c) and (d) or 3 (2) (a), (b) and (c) of Schedule 1 of the Hazardous Products Regulations (Canada):

(a) in the case of a hazardous product that is a material or substance, the generic chemical name of the material or substance;

(b) in the case of a hazardous product that is a mixture, the generic chemical name of each material or substance in the mixture that, individually, is classified in any category or subcategory of a health hazard class and is present above the applicable concentration limit or is present at a concentration that results in the mixture being classified in a category or subcategory of a health hazard class.

(4) A manager is deemed to comply with this code if the manager produces a hazardous product at the mine and files a claim for exemption under subsection 11 (2) (b) (iii) of the *Hazardous Materials Information Review Act* (Canada), and the manager prepares a SDS in respect of that hazardous product that does not disclose the information element listed in section 3 (2) (d) of Schedule 1 of the Hazardous Products Regulations (Canada).

(5) A manager is deemed to comply with this code if the manager produces a hazardous product at the mine and files a claim for exemption under subsection 11 (2) (d) of the *Hazardous Materials Information Review Act* (Canada), and the manager prepares a SDS in respect of that hazardous product that discloses, in place of the product identifier, a code name or code number for the product.

(6) A manager who files a claim for exemption from a requirement to disclose information in respect of a hazardous product on a SDS or on a label must disclose on the SDS and, where applicable, on the label of the hazardous product or the container of the hazardous product,

(a) the date that the claim for exemption was filed, and

(b) the registry number assigned to the claim under the *Hazardous Materials Information Review Act* (Canada).

(7) The requirements referred to in subsection (6) apply until
   (a) in the case of an order that was issued by a screening officer under the *Hazardous Materials Information Review Act* (Canada), the end of the period that begins on the final disposition of the proceedings under that Act in relation to the claim for exemption and does not exceed the period specified in the order, or
   (b) in any other case, the end of the period not exceeding 30 days after the final disposition of the proceedings in relation to the claim for exemption.

(8) Information that a manager considers to be confidential business information is exempt from disclosure from the time a claim is filed under subsection (2) until the final disposition of the proceedings under the *Hazardous Materials Information Review Act* (Canada) in relation to the claim and for a period of 3 years after that if the claim is found to be valid.

(9) A manager who receives notice of a decision made under the *Hazardous Materials Information Review Act* (Canada) that the manager's claim or a portion of the manager's claim for exemption from a requirement to provide information in respect of a hazardous product on a SDS or a label is valid must, during the period beginning no later than the end of the applicable period specified in subsection (7) of this section and on compliance with any order issued under subsection 16 (1) or 17 (1) of the *Hazardous Materials Information Review Act* (Canada), if applicable, and ending on the last day of the exemption period, in respect of the sale or importation of the hazardous product, disclose on the SDS and, if applicable, on the label of the hazardous product or container in which the hazardous product is packaged, the following information:
   (a) a statement that an exemption has been granted;
   (b) the date of the decision granting the exemption;
   (c) the registry number assigned to the claim under the *Hazardous Materials Information Review Act* (Canada).

(10) A manager who makes a claim under subsection (1) must abide by the decisions and orders issued under the *Hazardous Materials Information Review Act* (Canada).

(11) An appeal from a decision or order referred to in subsection (10) may be made under and in accordance with the *Hazardous Materials Information Review Act* (Canada) and any regulations made under that Act.

Confidentiality of Information

2.13.16 (1) Where an inspector enforcing this code obtains information under section 46 (2) (e) of the *Hazardous Materials Information Review Act* (Canada), the person to whom the information is communicated must keep it confidential and must not disclose the information to any person except for the purposes of enforcement of this code.

(2) A person to whom information is disclosed pursuant to subsection (1) must keep the information confidential.

Disclosure of Information in Medical Emergencies

2.13.17 (1) The manager must, in respect of a hazardous product present or which was present at the mine, provide information respecting the hazardous product, including confidential business information in the possession of the manager to a health professional who requests information on the hazardous product for rendering medical treatment to a person in an emergency.

(2) Any information that, by virtue of an exemption under the *Hazardous Materials Information Review Act* (Canada) or this code, is not required to be disclosed on the SDS but has nevertheless been provided by a manager to any health professional who requests that information for the purpose of making a medical diagnosis of, or rendering medical treatment to, a person in a medical emergency must be kept confidential, except for the purpose for which it was provided, if the health professional has been informed by the manager that the information is to be kept confidential.

Prohibition Against Disclosure

2.13.18 A person must not use, disclose, or release information protected as confidential business information under this code except as provided by sections 2.13.16 and 2.13.17.

Materials not Classed as Hazardous Products

2.13.19 The manager must ensure that persons who work with, or may be exposed to a hazardous product, comply with the procedures for the safe storage, handling, and use of those products, including the wearing of suitable personal protective equipment, as described in the SDS for those products.

Table 2-1

Item	Substance [CAS #]	TLV-TWA	TLV-STEL	Notation
1	Acetone [67-64-1]	750 ppm	1,000 ppm	–
2	Aluminum metal [7429-90-5] and insoluble compounds	1 mg/m^3 (R)	–	–
3	Ammonia [7664-41-7]	25 ppm	35 ppm	–
4	Antimony [7440-36-0] and compounds, as Sb	0.5 mg/m^3	–	–
5	Arsenic [7440-38-2] and inorganic compounds, as As	0.01 mg/m^3	–	A1, 1
6	Asbestos [1332-21-4], all forms	0.1 fibre/cc (F)	–	A1, 1
7	Beryllium [7440-41-7], soluble and insoluble compounds, as Be	0.002 mg/m^3	–	A1, 1, Skin, DSEN (soluble); A1, 1, RSEN (soluble and insoluble)
8	Cadmium [7440-43-9] and compounds, as Cd	0.002 mg/m^3 (R), 0.01 mg/m^3	–	A2, 1
9	Carbon dioxide [124-38-9]	5,000 ppm	30,000 ppm	–
10	Carbon disulphide [75-15-0]	1 ppm	–	Skin
11	Carbon monoxide [630-08-0]	25 ppm	–	Repro
12	Chlorine [7782-50-5]	0.5 ppm	1 ppm	–
13	Chromium [7440-47-3] and inorganic compounds Trivalent chromium compounds, as Cr(III), Water-soluble compounds Hexavalent chromium compounds, as Cr(VI) Water-soluble compounds Insoluble compounds	 0.5 mg/m^3 0.025 mg/m^3 0.01 mgm^3	 – – –	 DSEN, RSEN A1, 1, Skin, DSEN, RSEN A1, 1, DSEN, RSEN
14	Coal Dust Anthracite [8029-10-5] Bituminous or Lignite [308062-82-0]	 0.4 mg/m^3 (G), (R) 0.9 mg/m^3 (G), (R)	 – –	 – –

Item	Substance [CAS #]	TLV-TWA	TLV-STEL	Notation
15	Cobalt [7440-48-4] and inorganic compounds, as Co	0.02 mg/m^3	–	2B, DSEN, RSEN
16	Copper [7440-50-8] Fume, as Cu Dusts, and mists, as Cu	 0.2 mg/m^3 1 mg/m^3	 – –	 – –
17	Diesel Particulate Matter, as Elemental Carbon	0.1 mg/m^3	–	1
18	Formaldehyde [50-00-0]	0.1 ppm	0.3 ppm	A1, 1, DSEN, RSEN
19	Hydrogen chloride [7647-01-0]	–	C 5 ppm	–
20	Hydrogen cyanide [74-90-8]	–	C 10 ppm	Skin
21	Hydrogen sulphide [7783-06-4]	10 ppm	15 ppm	–
22	Iron oxide dust and fume (Fe_2O_3) [1309-37-1], as Fe	5 mg/m^3	–	–
23	Lead [7439-92-1] and inorganic compounds, as Pb	0.05 mg/m^3	–	2B, Repro (Elemental); 2A, Repro (Inorganic)
24	Manganese [7439-96-5], elemental and inorganic compounds, as Mn	0.02 mg/m^3 (R), 0.1 mg/m^3 (I)	–	Repro
25	Molybdenum [7439-98-7], as Mo Soluble compounds Metal and insoluble compounds	 0.5 mg/m^3 (R) 10 mg/m^3 (I), 3 mg/m^3 (R)	 – –	 – –
26	Methane [74-82-8]	(D)	–	–
27	Methylene bisphenyl isocyanate (MDI) [101-68-8]	0.005 ppm	–	Skin, RSEN
28	Nickel [7440-02-0], Elemental and soluble inorganic compounds, as Ni	0.05 mg/m^3	–	1 (Ni compounds), 2B (elemental and alloys containing Ni)
29	Nickel [7440-02-0], Insoluble inorganic compounds, as Ni	0.05 mg/m^3	–	A1, 1
30	Nitric acid [7697-37-2]	2 ppm	4 ppm	–
31	Nitric oxide [10102-43-9]	25 ppm	–	–
32	Nitrogen dioxide [10102-44-0]	1 ppm	–	–
33	Nitrous oxide [10024-97-2]	50 ppm	–	Repro
34	Ozone [10028-15-6]	–	C 0.1 ppm	–

Item	Substance [CAS #]	TLV-TWA	TLV-STEL	Notation
35	Silica – Amorphous			
	Diatomaceous earth (uncalcined) [61790-53-2]	10 mg/m^3 (E)	–	–
	Precipitated silica [112926-00-8]	10 mg/m^3 (E)	–	–
	Silica gel	10 mg/m^3 (E)	–	–
	Silica, fume [69012-64-2]	2 mg/m^3 (R)	–	–
36	Silica – Crystalline			
	Cristobalite [14464-46-1]	0.05 mg/m^3, (R)	–	A2, 1
	α-Quartz [14808-60-7; 1317-95-9]	0.05 mg/m^3, (R)	–	A2, 1
37	Sulphur dioxide [7446-09-5]	2 ppm	5 ppm	-
38	Sulphuric acid [7664-93-9]	1 mg/m^3	3 mg/m^3	A2, 1
39	Toluene [108-88-3]	100 ppm	150 ppm	Repro
40	Vanadium pentoxide [1314-62-1], as V	0.05 mg/m^3 (I)		2B
41	Wood dust			
	Certain hard woods as beech and oak	1 mg/m^3	–	A1, A2, 1
	Soft wood	5 mg/m^3	10 mg/m^3	1
42	Zinc oxide [1314-13-2]	2 mg/m^3 (R)	-	–

Footnotes for Table 2-1

Units: Exposure limits are reported in ppm, mg/m^3 or fibre/cc. In general, contaminants present in air in a vapour or gaseous state are reported in parts per million (ppm).
Contaminants present in air as an aerosol (dust, fume, mist) are typically reported in milligrams per cubic meter (mg/m^3). For information on unit conversions between ppm and mg/m^3, consult the publication by the American Conference of Governmental Industrial Hygienists ("ACGIH") entitled, "Threshold Limit Values for Chemical Substances and Physical Agents & Biological Exposure Indices" ("TLVs & BEIs").

ppm means parts of vapour or gas per million parts of contaminated air volume at 25 degrees Celsius and 760 torr.
fibre/cc means fibre per cubic centimeter.
mg/m^3 means milligrams of substance per cubic meter of air.

CAS # means Chemical Abstract Series number.
C means ceiling limit (TLV C).

(D) Simple asphyxiant; for more information consult the ACGIH publication, TLVs and BEIs, as amended from time to time, on this topic.
(E) The value is for particulate matter containing no asbestos and < 1% crystalline silica.
(F) Respirable fibres longer than 5 μm and with an aspect ratio equal to or greater than 3:1, as determined by the membrane filter method at 400 – 450 × magnification (4 mm objective), using phase contrast illumination.
(G) The value is for particulate matter containing <5% free silica.
(I) These threshold limit values are for the inhalable fraction of particulate matter for the

substance listed. The mass concentration of inhalable particulate matter for the application of this limit is to be determined in accordance with the parameters established in the ACGIH publication, TLVs & BEIs, as amended from time to time.

(R) These threshold limit values are for the respirable fraction of particulate matter for the substance listed. The mass concentration of respirable particulate matter for the application of this limit is to be determined in accordance with the parameters established in the ACGIH publication, TLVs & BEIs, as amended from time to time.

DSEN means that the substance has been identified by the ACGIH as having specific evidence of the potential to produce sensitization by the dermal route.
RSEN means that the substance has been identified by the ACGIH as having specific evidence of the potential to produce sensitization by the respiratory route.
Repro means that the substance has been identified by the ACGIH as a reproductive toxin.
Skin means that the ACGIH has identified that there is potential significant contribution to the overall exposure by this route, including mucous membranes and the eyes, by contact with vapours, liquids, and solids.

Notations column:

ACGIH notations A1 and A2 and International Agency for Research on Cancer ("IARC") notations 1, 2A and 2B indicate substances designated as carcinogens. The different categories used by the two organizations indicate different levels of certainty of carcinogenic effect, e.g. from confirmed carcinogen to probable or possible. For additional information on the background and rationale for the different categories of carcinogens, refer to the ACGIH publication, TLVs & BEIs, as amended from time to time, ACGIH publication, "Supplement to the Documentation of the Threshold Limit Values and Biological Exposure Indices", as amended from time to time, and the IARC publication, "Overall Evaluations of Carcinogenicity to Humans", as amended from time to time. Both agencies provide information on their web sites.

ACGIH Carcinogen designation:		IARC Carcinogen classification:	
A1	Confirmed Human Carcinogen.	1	Carcinogenic to humans.
A2	Suspected Human Carcinogen.	2A	Probably carcinogenic to humans.
		2B	Possibly carcinogenic to humans.

Table 2-2

Maximum permissible noise exposure for unprotected ears on a daily basis:
Lex = 85 dBA average for 8 hours, or equivalent, including peak impulse noise except

(a) no exposure to steady state noise over 109 dBA, and
(b) no exposure to peak impulse noise over 140 dBC,

where;

(1) "Lex" is the equivalent of 85 dBA for 8 hours (see examples below).
(1) "Steady state noise" means noise in which variations of peak pressure levels are one second or less, and
(1) "Peak Impulse" means noise in which variations of peak pressure levels are greater than one second apart.

Examples of equivalent levels to 85 dBA for 8 hours:

Length of Exposure	Average Noise Level
16 hours	82 dBA
12 hours	83 dBA
10 hours	84 dBA
8 hours	85 dBA
4 hours	88 dBA
2 hours	91 dBA
1 hours	94 dBA
1/2 hours	97 dBA
1/4 hours	100 dBA

Table 2-3

Maximum Equivalent Noise Level, dBA	Required Rating of Hearing Protector	
	Class A, B or C †	NRR ‡
Leq less than 85 dBA	None required	None required
Leq up to 89 dBA	Class C	up to 16
Leq up to 95 dBA	Class B	at least 17
Leq up to 105 dBA	Class A	at least 24
Leq up to 110 dBA	Class A plug plus Class A or B muff	At least 24 plug plus At least 17 muff
Leq more than 110 dBA	As above, with limited exposure	As above, with limited exposure

† Canadian Standards Association standard Z94.2-94.
‡ Noise Reduction Rating (NRR) subject to Canadian Standards Association standard Z94.2-94 frequency requirements.

Table 2-4
Adjustment Categories for Airborne Substances

Item	Substance	Category
1	Acetaldehyde [75-07-0]	I-A
2	Acetic acid [64-19-7]	I-B
3	Acetic anhydride [108-24-7]	I-B
4	Acetone cyanohydrin [75-86-5]	I-A

Item	Substance	Category
5	Acetonitrile [75-05-8]	II
6	Acetophenone [98-86-2]	I-B
7	Acetylene [74-86-2]	I-C
8	Acetylsalicylic acid (Aspirin) [50-78-2]	II
9	Acrolein [107-02-8]	I-B
10	Acrylamide [79-06-1]	III
11	Acrylic acid [79-10-7]	I-B
12	Acrylonitrile [107-13-1]	III
13	Adipic acid [124-04-9]	III
14	Adiponitrile [111-69-3]	IV
15	Aldrin [309-00-2]	IV
16	Allyl alcohol [107-18-6]	I-B
17	Allyl glycidyl ether (AGE) [106-92-3]	I-B
18	Allyl propyl disulfide [2179-59-1]	I-B
19	Aluminum metal [7429-90-5] (as Al)	IV
20	4-Aminodiphenyl [92-67-1]	III
21	2-Aminopyridine [504-29-0]	II
22	Amitrole [61-82-5]	III
23	Ammonia [7664-41-7]	I-B
24	Ammonium chloride fume [12125-02-9]	I-B
25	Ammonium perfluorooctanoate [3825-26-1]	III
26	Ammonium sulfamate [7773-06-0]	I-B
27	Aniline [62-53-3]	I-C
28	ortho-Anisidine [90-04-0]	II
29	para –Anisidine [104-94-9]	II
30	Antimony [7440-36-0], metal and compounds (as Sb)	III
31	Antimony trioxide [1309-64-4]	III
32	ANTU (alpha-Naphthylthiourea) [86-88-4]	II
33	Argon [7440-37-1]	I-C
34	Arsenic, elemental [7440-38-2], and inorganic compounds (except Arsine) (as As)	III
35	Arsine [7784-42-1]	IV
36	Asbestos [1332-21-4], all forms	III
37	Asphalt (petroleum) fumes [8052-42-4], as benzene soluble aerosol	III
38	Atrazine [1912-24-9] (and related symmetrical triazins)	II
39	Azinphos-methyl [86-50-0]	IV
40	Barium [7440-39-3], soluble compounds (as Ba)	II
41	Barium sulfate [7440-39-3]	III
42	Benomyl [17804-35-2]	I-C
43	Benz(a)anthracene [56-55-3]	III
44	Benzene [71-43-2]	III
45	Benzidine [92-87-5]	III
46	Benzo(a)pyrene [50-32-8]	III
47	Benzo(b)fluoranthene [205-99-2]	III
48	p-Benzoquinone [106-51-4]	I-B
49	Benzotrichloride [98-07-7]	I-A
50	Benzoyl chloride [98-88-4]	IV
51	Benzoyl peroxide [94-36-0]	I-B

Item	Substance	Category
52	Benzyl chloride [100-44-7]	IV
53	Beryllium [7440-41-7] metal, soluble and insoluble compounds (as Be)	III
54	Biphenyl [92-52-4]	I-B
55	Bismuth telluride [1304-82-1] (as Bi2Te3), Se-doped	III
56	Bismuth telluride [1304-82-1] (as Bi2Te3), undoped	I-C
57	Borate compounds, inorganic [1303-96-4; 1330-43-4; 10043-35-3; 12179-04-3]	I-B
58	Boron oxide [1303-86-2]	I-B
59	Boron tribromide [10294-33-4]	I-A
60	Boron trifluoride [7637-07-2]	I-A
61	Bromacil [314-40-9]	III
62	Bromine [7726-95-6]	I-B
63	Bromine pentafluoride [7789-30-2]	I-B
64	Bromoform [75-25-2]	IV
65	1,3-Butadiene [106-99-0]	III
66	Butane, isomers [75-28-5; 106-97-8]	I-C
67	2-Butoxyethanol [111-76-2]	III
68	Butyl acetates, all isomers [105-46-4; 110-19-0; 123-86-4; 540-88-5]	I-B
69	n-Butyl acrylate [141-32-2]	I-B
70	n-Butyl alcohol (n-Butanol) [71-36-3]	I-A
71	sec-Butyl alcohol (sec-Butanol) [78-92-2]	II
72	tert-Butyl alcohol (tert-Butanol) [75-65-0]	II
73	tert-Butyl chromate (as CrO3) [1189-85-1]	I-A
74	n-Butyl glycidyl ether (BGE) [2426-08-6]	III
75	n-Butyl lactate [138-22-7]	I-B
76	n-Butyl mercaptan [109-79-5]	I-B
77	n-Butylamine [109-73-9]	I-A
78	o-sec-Butylphenol [89-72-5]	I-B
79	p-tert-Butyltoluene [98-51-1]	III
80	Butylated hydroxytoluene (BHT; 2,6-Di-tert-butyl-p-cresol) [128-37-0]	I-C
81	Cadmium elemental [7440-43-9] and compounds (as Cd)	III
82	Calcium carbonate, Td [471-34-1]	I-C
83	Calcium cyanamide [156-62-7]	I-B
84	Calcium hydroxide [1305-62-0]	I-B
85	Calcium oxide [1305-78-8]	I-B
86	Calcium silicate, naturally occurring as Wollastonite [13983-17-0]	I-B
87	Calcium sulfate [7778-18-9; 10034-76-1; 10101-41-4; 13397-24-5]	I-C
88	Camphor (synthetic) [76-22-2]	I-B
89	Caprolactam, [105-60-2]	I-B
90	Captafol [2425-06-1]	III
91	Captan [133-06-2]	III
92	Carbaryl [63-25-2]	IV

Item	Substance	Category
93	Carbofuran [1563-66-2]	IV
94	Carbon black [1333-86-4]	III
95	Carbon dioxide [124-38-9]	I-C
96	Carbon disulfide [75-15-0]	IV
97	Carbon monoxide [630-08-0]	IV
98	Carbon tetrabromide [558-13-4]	IV
99	Carbon tetrachloride [56-23-5]	IV
100	Carbonyl fluoride [353-50-4]	IV
101	Catechol [120-80-9]	IV
102	Cellulose [9004-34-6]	I-C
103	Cesium hydroxide [21351-79-1]	I-B
104	Chlordane [57-74-9]	IV
105	Chlorinated camphene [8001-35-2]	IV
106	Chlorinated diphenyl oxide [31242-93-0]	III
107	Chlorine [7782-50-5]	IV
108	Chlorine dioxide [10049-04-4]	II
109	Chlorine trifluoride [7790-91-2]	I-A
110	Chloroacetaldehyde [107-20-0]	I-A
111	Chloroacetone [78-95-5]	I-A
112	2-Chloroacetophenone [532-27-4]	I-B
113	Chloroacetyl chloride [79-04-9]	I-B
114	Chlorobenzene [108-90-7]	IV
115	o-Chlorobenzylidene malononitrile [2698-41-1]	I-A
116	Chlorobromomethane [74-97-5]	III
117	Chlorodifluoromethane [75-45-6]	I-C

Item	Substance	Category
118	Chlorodiphenyl (42% chlorine) [53469-21-9]	III
119	Chlorodiphenyl (54% chlorine) [11097-69-1]	III
120	Chloroform [67-66-3]	IV
121	Chloromethyl methyl ether [107-30-2]	III
122	bis (Chloromethyl) ether [542-88-1]	III
123	1-Chloro-1-nitropropane [600-25-9]	II
124	Chloropentafluoroethane [76-15-3]	I-C
125	Chloropicrin [76-06-2]	II
126	-Chloroprene [126-99-8]	IV
127	3-Chloropropene [107-05-1]	III
128	2-Chloropropionic acid [598-78-7]	III
129	o-Chlorostyrene [2039-87-4]	IV
130	o-Chlorotoluene [95-49-8]	I-B
131	Chlorpyrifos [2921-88-2]	IV
132	Chromite ore processing (chromate) (as Cr)	III
133	Chromium [7440-47-3] (metal)	III
134	Chromium (III) compounds (as Cr)	III
135	Chromium VI, water insoluble inorganic compounds (as Cr)	III
136	Chromium VI, water soluble inorganic compounds (as Cr)	III
137	Chromyl chloride [14977-61-8]	III
138	Chrysene [218-01-9]	III

Item	Substance	Category
139	Clopidol [2971-90-6]	I-C
140	Coal dust (Anthracite) [8029-10-5]	III
141	Coal dust (Bituminous or Lignite) [308062-82-0])	III
142	Coal tar pitch volatiles [65996-93-2], as benzene solubles	III
143	Cobalt [7440-48-4], elemental and inorganic compounds (as Co)	III
144	Cobalt carbonyl [10210-68-1] (as Co)	II
145	Cobalt hydrocarbonyl (as Co) [16842-03-8]	II
146	Cobalt carbonyl [10210-68-1], as Co	II
147	Copper [7440-50-8] (as Cu)	II
148	Cotton dust, raw, untreated	III
149	Cresol (all isomers) [95-48-7; 106-44-5; 108-39-4; 1319-77-3]	I-B
150	Crotonaldehyde [4170-30-3]	I-B
151	Crufomate [299-86-5]	IV
152	Cumene [98-82-8]	II
153	Cyanamide [420-04-2]	I-B
154	Cyanides (as Cn) [57-12-5]	I-A
155	Cyanogen [460-19-5]	I-B
156	Cyanogen chloride [506-77-4]	I-A
157	Cyclohexane [110-82-7]	I-B
158	Cyclohexanol [108-93-0]	IV
159	Cyclohexanone [108-94-1]	III
160	Cyclohexene [110-83-8]	I-B

Item	Substance	Category
161	Cyclohexylamine [108-91-8]	I-B
162	Cyclonite [121-82-4]	III
163	Cyclopentadiene [542-92-7]	I-B
164	Cyclopentane [287-92-3]	IV
165	Cyhexatin [13121-70-5]	I-C
166	2,4-D [94-75-7]	III
167	DDT (Dichlorodiphenyltrichloroethane) [50-29-3]	IV
168	Decaborane [17702-41-9]	IV
169	Demeton® [8065-48-3]	IV
170	Di(2-ethylhexyl) phthalate (DEHP) [117-81-7]	III
171	Diacetone alcohol [123-42-2]	I-B
172	Diazinon® [333-41-5]	IV
173	Diazomethane [334-88-3]	IV
174	Diborane [19287-45-7]	IV
175	1,2-Dibromoethane [106-93-4]	III
176	Dibutyl phenyl phosphate [2528-36-1]	IV
177	Dibutyl phosphate [107-66-4]	I-B
178	Dibutyl phthalate [84-74-2]	I-B
179	2-N-Dibutylaminoethanol [102-81-8]	III
180	1,3-Dichloro -5,5-dimethyl hydantoin [118-52-5]	I-B
181	Dichloroacetylene [7572-29-4]	I-A
182	o-Dichlorobenzene [95-50-1]	I-A
183	p-Dichlorobenzene [106-46-7]	III
184	3,3'-Dichlorobenzidine [91-94-1]	III

Item	Substance	Category
185	1,4-Dichloro-2-butene [764-41-0]	III
186	Dichlorodifluoromethane [75-71-8]	I-C
187	1,1-Dichloroethane [75-34-3]	IV
188	1,2-Dichloroethane [107-06-2]	III
189	Dichloroethyl ether [111-44-4]	II
190	1,1-Dichloroethylene [75-35-4]	III
191	1,2-Dichloroethylene, all isomers [156-59-2; 156-60-5; 540-59-0]	IV
192	Dichlorofluoromethane [75-43-4]	IV
193	Dichloromethane (methylene chloride) [75-09-2]	IV
194	1,3-Dichloropropene [542-75-6]	IV
195	Dichlorotetrafluoroethane [76-14-2]	I-C
196	1,1-Dichloro-1-nitroethane [594-72-9]	II
197	2,2-Dichloropropionic acid [75-99-0]	I-B
198	Dichlorvos [62-73-7]	IV
199	Dicrotophos [141-66-2]	IV
200	Dicyclopentadiene [77-73-6]	III
201	Dicyclopentadienyl iron, as Fe [102-54-5]	I-C
202	Dieldrin [60-57-1]	IV
203	Diesel particulate matter (DPM)	IV
204	Diethanolamine [111-42-2]	I-B
205	Diethyl ketone [96-22-0]	II
206	Diethyl phthalate [84-66-2]	III
207	Diethylamine [109-89-7]	I-B
208	2-Diethylaminoethanol [100-37-8]	I-B
209	Diethylene triamine [111-40-0]	III
210	Difluorodibromomethane [75-61-6]	IV
211	Diglycidyl ether (DGE) [2238-07-5]	III
212	Diisobutyl ketone [108-83-8]	I-B
213	Diisopropylamine [108-18-9]	I-B
214	Dimethyl carbamoyl chloride [79-44-7]	III
215	Dimethyl sulfate [77-78-1]	III
216	N,N-Dimethylacetamide [127-19-5]	IV
217	Dimethylamine [124-40-3]	I-B
218	N,N-Dimethylaniline [121-69-7]	IV
219	N,N-Dimethylformamide [68-12-2]	III
220	1,1-Dimethylhydrazine [57-14-7]	III
221	Dimethyl phthalate [131-11-3]	I-B
222	Dinitolmide (3,5-dinitro-o-toluamide) [148-01-6]	III
223	Dinitro-ortho-cresol [534-52-1]	III
224	Dinitrobenzene (all isomers) [99-65-0; 100-25-4; 528-29-0; 25154-54-5]	IV
225	Dinitrotoluene [25321-14-6]	IV
226	1,4 Dioxane [123-91-1]	III
227	Dioxathion [78-34-2]	III
228	Diphenylamine [122-39-4]	IV